

Judgment Sheet
IN THE LAHORE HIGH COURT, BAHAWAL BENCH
BAHAWALPUR
JUDICIAL DEPARTMENT

Mohammad Ameer Qazi VS. Mohammad Asif Ali etc.

F.A.O No.17-2009

JUDGMENT

Date of hearing	20.11.2013
Appellant by	Mr. Tariq Mehmood Chaudhry, Advocate,
Respondent by	Mr. Ghazanfar Ali Khan, Advocate

Sadaqat Ali Khan, J. This judgment shall dispose of

- (i) FAO No.17/2009 titled Mohammad Ameer Qazi vs. Mohammad Asif Ali etc.
- (ii) FAO No.18/2009 titled Muhammad Ameer Qazi vs. Ali Ahmad
- (iii) FAO No.19/2009 titled Mohammad Ameer Qazi vs. Zulfiqar Ali etc

as the common point of jurisdiction is involved in all three appeals.

2. Brief facts of the case are that Muhammad Asif Ali respondent in FAO No.17/2009, Ali Ahmed respondent in FAO No.18/2009, and Zulfiqar Ali, and Mohammad Irfan respondents in FAO No.19/2009 moved three separate applications in the District Consumer Court, Bahawalpur on 11.02.2009 with assertion that they had purchased plots on installments spreading over four years and had been depositing installments with receipt regularly and are not defaulter. They stopped the installments when they received the receipts of the installments without signatures of the owner. They stated that the owner is not ready to transfer the land in their favour and that their grievance may be redressed by directing the owner to transfer

the land in their favour. Muhammad Ameer Qazi appellant in all three matters made entrance in the said court and was directed to submit written reply to the applications of the respondents. On 10.04.2009 following order was passed by the Court below in three applications separately which is reproduced as under:-

"10.04.2009 سائل حاضر۔ قاضی محمد امیر رسپانڈنٹ نمبر 1 محمد عرفان رسپانڈنٹ نمبر 2 حاضر۔ کچھ دیر بحث کرنے کے بعد دونوں رسپانڈنٹس بیانی ہیں کہ وہ سائل کو پلاٹ میدعو یہ کی رجسٹری کروانے کو تیار ہیں۔ لہذا ان کے بیانات قلمند کئے جاتے ہیں۔

بیان ازاں محمد امیر قاضی ولد فضل حق ذات کھوکھر عمر 73 سال پیشہ ریٹائرڈ ملازم سکھ 73/B سٹلائیٹ ٹاؤن بہاولپور
برحلف

بیاں ازاں محمد عرفان سہیل ولد عبدالمجید ذات سونگی عمر 40 سال سکھ ماہوی الاپچی خان (برحلف) ہم دونوں رسپانڈنٹس مشترکہ طور پر بیان کرتے ہیں۔ سائل کو پلاٹ متدعو یہ برقبہ 05-0 M کی رجسٹری اندر معیاد ایک ہفتہ کروادیں گے۔ بشرطیکہ مبلغ -/1725 روپے اسٹام ڈیوٹی کے رسپانڈنٹس کے حوالے کر دیئے جائیں۔ جو کہ سن کر درست تسلیم کیا۔ عدالت کے روبرو وصول کر لئے ہیں۔"

"10.04.2009: حکم۔ بیانات رسپانڈنٹس کی روشنی میں حکم دیا ہے کہ پلاٹ متدعو یہ کی رجسٹری بحق سائل کروا کے نقل رجسٹری بتقرر 18.04.2009 عدالت میں پیش کی جائے۔ سنایا گیا۔"

3. The above order has been challenged in all the three appeals before this Court.

4. **Mr. Tariq Mehmood Chaudhary, Advocate for appellant,** in all three appeals contended;

- (i) that the District Consumer Court had no jurisdiction to entertain the applications of the respondents which were regarding the alleged agreement to sell and Consumer Court was not a Civil Court;
- (ii) that order of the lower court by disposing of the matter on alleged statements of the parties is not legal and is beyond the jurisdiction;
- (iii) that with the consent of the parties no court can assume the jurisdiction, if court has no jurisdiction and that the impugned order in all the three matters are liable to be set aside.

5. **Mr. Ghazanfar Ali Khan, Advocate for respondents in all three appeals** contended that present appellant himself appeared in the Court and made a statement for transferring the land in their favour as agreed between the parties according to the agreement mentioned in their applications moved in District Consumer Court. He further contended that as both the parties themselves made statements regarding compromise in the Court so District Consumer Court has committed no illegality while recording compromise statements of the parties and disposal of the matter and lastly contended that all the three appeals may be dismissed.

6. **I have heard** the learned counsel for the parties and have perused the record.

7. **The preamble to the Punjab Consumer Protection Act (PCPA states:-**

PREAMBLE:- Whereas, it is expedient to provide for protection and promotion of the rights and interests of the consumers, speedy redress of consumer complaints and for matters connected therewith.”

8. **Consumer is defined in Section 2-C of the Consumer Protection Act, 2005 as under:-**

2 (C) “ Consumer” means a person or entity who—

- (i) buys or obtains on lease any product for a consideration and includes any user of such product but does not include a person who obtains any product for re-sale or for any commercial purpose; or
- (ii) hires any services for a consideration and includes any beneficiary of such services;

Explanation:-

For the purpose of Sub-clause

- (i) “commercial purpose” does not include use by a consumer of products bought and used by him only for the purpose of his livelihood as a self-employed person.

Services are defined in 2-K of PCPA Act 2005 is as under:-

“Services” includes the provision of any kind of facilities or advice or assistance such as provision of medical, legal or engineering services but does not include--

- (i) the rendering of any service under a contract of personal service;
- (ii) the rendering of non-professional services like astrology or palmistry; or
- (iii) a service, the essence of which is to deliver judgment by a court of law or arbitrator;

Section 13 of the PCPA 2005 is as under:-

Liability for faulty or defective services.-

A provider of services shall be liable to a consumer for damages proximately caused by the provision of services that have caused damage

Section 28 of PCPA Act 2005, is as under:-

(1) “ A consumer who has suffered damage, or Authority `in other cases, shall, by written notice, call upon a manufacturer or provider of services that a product or service is defective or faulty, or the conduct of the manufacturer or service provider is in contravention of the provisions of this Act and he should remedy the defects or give damages where the consumer has suffered damage, or cease to contravene the provisions of this Act.

(2) The manufacturer or service provider shall, within fifteen days of the receipt of the notice, reply thereto.

(3) No claim shall be entertained by a Consumer Court unless the consumer or the Authority has given notice under sub-section (1) and provides proof that the notice was duly delivered but the manufacturer or service provider has not responded thereto.

(4) A claim by the consumer or the Authority shall be filed within thirty days of the arising of the cause of action:

Provided that the Consumer Court, having jurisdiction to hear the claim, may allow a claim to be filed after thirty days within such time as it may allow if it is satisfied that there was sufficient cause for not filing the complaint within the specified period:

Provided further that such extension shall not be allowed beyond a period of sixty days from the expiry of the warranty or guarantee period specified by the

manufacturer or service provider and if no period is specified one year from the date of purchase of the products or providing of services.

Section 31 of PCPA Act 2005, is as under.-

ORDER OF CONSUMER COURT

If, after the proceedings conducted under this Act, the Consumer Court is satisfied that the products complained against suffer from any of the defects specified in the claim or that any or all of the allegations contained in the claim about the services provided are true, it shall issue an order to the defendant directing him to take one or more of the following actions, namely:-

- (a) to remove defect from the products in question;
- (b) to replace the products with new products or similar description which shall be free from any defect;
- (c) to return to the claimant the price or, as the case may be, the charges paid by the claimant;
- (d) to do such other things as may be necessary for adequate and proper compliance with the requirements of this Act;
- (e) to pay reasonable compensation to the consumer for any loss suffered by him due to the negligence of the defendant;
- (f) to award damages where appropriate;
- (g) to award actual costs including lawyer's fees incurred on the legal proceedings;
- (h) to recall the product from trade or commerce;
- (i) to confiscate or destroy the defective product;
- (j) to remedy the defect in such period as may be deemed fit; or
- (k) to cease to provide the defective or faulty service until it achieves the required standard.

8. The contents of the application of each respondent is as under:-

" گزارش ہے کہ میں نے قاضی بلاک میں ایک عدد پلاٹ بذریعہ محمد عرفان حذیفہ پر اپریٹی ڈیلر موجودہ نام عمر سٹیٹ ایجنسی کے ذریعے لیا تھا۔ میں متواتر چار سال کی اقساط باقاعدگی سے جمع کرواتا رہا تھا۔ اُن اقساط کی رسید پر مالک کے دستخط ہوئے تھے۔ پھر مالک کے دستخط کے بغیر قسط کی رسید ملی تو میں اقساط جمع کروانا روک دیا۔

پلاٹ کی فی مرلہ 12 ہزار روپے کے حساب سے قیمت طے ہوئی تھی۔ جو (معاهدہ) اسٹامپ پیپر پر درج ہے۔ بقایا اقساط جمع کروا کر رجسٹری کروانا چاہتا ہوں لیکن مالک رجسٹری کروانے کے لیے تیار نہیں ہے۔ مالک کو 22 دسمبر کو نوٹس بھی بھجوا یا تھا لیکن کوئی جواب نہیں ملا۔

آپ سے گزارش ہے کہ مجھے میرا حق دلوا یا جائے۔ پلاٹ کی رجسٹری اور عدالت کے تمام اخراجات بھی محمد امیر قاضی سے دلوائے جائیں۔ آپ کی عین نوازش ہوگی۔"

درخواست گزار
محمد آصف علی

2۔ گزارش ہے کہ میں نے قاضی بلاک میں ایک عدد پلاٹ بذریعہ محمد عرفان حذیفہ پر اپریٹی ڈیلر موجودہ نام عمر سٹیٹ ایجنسی کے ذریعے لیا تھا۔ میں متواتر چار سال کی اقساط باقاعدگی سے جمع کرواتا رہا تھا۔ اُن اقساط کی رسید پر مالک کے دستخط ہوئے تھے۔ پھر مالک کے دستخط کے بغیر قسط کی رسید ملی تو میں اقساط جمع کروانا روک دیں۔

پلاٹ کی فی مرلہ 12 ہزار روپے کے حساب سے قیمت طے ہوئی تھی۔ جو (معادہ) اسٹامپ پیپر پر درج ہے۔ میں نے محمد امیر صاحب کے اکاؤنٹ نمبر 71000123-03 حبیب بینک جمائیناں برانچ میں بقایا اقساط جمع کروا دیں۔ بلکہ عرفان پراپرٹی ڈیلر کے اصرار پر کہ مالک رجسٹری نہیں کرواتا اضافی رقم مانگتا ہے۔ جس کی بنا پر اضافی 30 ہزار روپے بھی اکاؤنٹ میں جمع کروادیئے کہ کسی طرح تو رجسٹری کروادیں۔ جس کے بدلے پراپرٹی ڈیلر نے رجسٹری کے لیے اسٹامپ لینے کے لیے چالان فارم پر مالک کے دستخط کروا کر دیئے جو مبلغ 1725 روپے خزانے کے اکاؤنٹ میں جمع کروادیئے لیکن ابھی تک انھوں نے اسٹامپ نکلوا کر رجسٹری نہیں کروائی۔

درخواست گزار

ذوالفقار علی، شوکت علی۔

گزارش ہے کہ میں نے قاضی بلاک میں ایک عدد پلاٹ بذریعہ محمد عرفان حذیفہ پراپرٹی ڈیلر موجودہ نام عمر سٹیٹ ایجنسی کے ذریعے لیا تھا۔ میں متواتر چار سال اقساط باقاعدگی سے جمع کرواتا رہا تھا۔ اُن اقساط کی رسید پر مالک کے دستخط ہوئے تھے۔ پھر مالک کے دستخط کے بغیر قسط کی رسید ملی تو میں اقساط جمع کروانا روک دیں۔

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کروانا اضافی رقم مانگتا ہے۔ جس کی بنا پر اضافی 30 ہزار روپے بھی اکاؤنٹ میں جمع کروادیئے کہ کسی طرح تو رجسٹری کروادیں۔ جس کے بدلے پراپرٹی ڈیلر نے رجسٹری کے لیے اسٹامپ لینے کے لیے چالان فارم پر مالک کے دستخط کروا کر دیئے جو مبلغ 1725 روپے خزانے کے اکاؤنٹ میں جمع کروادیئے لیکن ابھی تک انھوں نے اسٹامپ نکلوا کر رجسٹری نہیں کروائی۔

درخواست گزار

علی احمد۔

9. Perusal of the above provisions shows that in order to invoke the jurisdiction of the Consumer Court, the complainant must first qualify to be "Consumer". To be a Consumer under the said Act, a person must hire the "Services" for a certain consideration from the services provider. In case there is no Services being availed by the complainant and no consideration being paid in return for the said services, the complainant does not qualify to be a Consumer and, therefore, the matter goes outside the fold of said Act.

10. According to the contents of all the three applications all the applicants alleged that there was an agreement regarding the purchase of plots but present appellant has refused to execute the register sale deed in their favour. This matter relates to the breach of contract and

civil court has the jurisdiction and absolutely Consumer Court had not the jurisdiction who had wrongly entertained such an applications for execution of the agreement to sell regarding immoveable property and decided the same illegally without jurisdiction. As dispute regarding immoveable property cannot be converted as consumer dispute since there is no sale of goods or services for consideration. The arguments of the learned counsel for the respondents that both the parties with their consent decided the matter from District Consumer Court is not tenable as it is held in case titled “**Administrator, Thal Development through EACO Bhakkar and others vs. Ali Muhammad**” (2012 SCMR 730) as under:-

Consent of the parties can neither confer nor can take away the jurisdiction of a Court/Tribunal, unless so conferred or barred by law.”

Jurisdiction of the Consumer Court is different from the civil jurisdiction. Consumer Court is to identify a consumer a building service and then if the service is defective, the Consumer Court is to fix damages and award the same as stated above. Needless to mention here that it is the duty of every court to examine the issue of bar of its jurisdiction at the earliest opportunity and decide it in accordance with law, instead of escaping to decide such important aspect of the case on mere concession of one or the other party.

11. In view of what has been discussed, these three appeals are allowed and order dated 10.04.2009 passed by District Consumer

Court Bahawalpur, is set aside by dismissing all three applications of the respondents.

(Sadaqat Ali Khan)
Judge

Approved for reporting.

Ramzan*